

Court No. - 39

Case :- WRIT - C No. - 39808 of 2014

Petitioner :- Smt. Shakuntala Devi

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Manu Misra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Contention on behalf of the petitioner is that the demand of Rs.13,345/- made in the year 2013 after permanent disconnection of electricity in the year 2004, is patently illegal and without jurisdiction, inasmuch as in view of the provisions of Clause 6.15 of U.P. Electricity Supply Code, 2005, no outstanding dues are recoverable after two years from the date of such disconnection unless it has been continuously shown as being recoverable.

Reliance in support of the contention has been placed on the Division Bench Judgment dated 22.5.2013 passed by this Court in Writ Petition (M/B) No. 9090 of 2012 (Satya Narayan Vs. U.P. Power Corporation Ltd.).

Sri Baleshwar Chaturvedi, appearing for the respondent-corporation prays for and is allowed three weeks' time to file counter affidavit. Petitioner will have two weeks thereafter for filing rejoinder affidavit.

List after expiry of the aforesaid period.

Considering the facts and circumstances of the case, until further orders of this Court, recovery proceedings initiated against the petitioner in pursuance to the demand notice dated 20.4.2013 shall remain stayed.

Order Date :- 4.8.2014

Anil

Court No. - 32

Case :- WRIT - C No. - 39808 of 2014

Petitioner :- Smt. Shakuntala Devi

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Manu Misra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

The case is passed over on the illness slip of the learned counsel for the petitioner.

Order Date :- 1.4.2015

MAA/-

(Amar Singh Chauhan,J.) (Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 39808 of 2014

Petitioner :- Smt. Shakuntala Devi

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Manu Misra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

Learned counsel for the respondent prays for and is granted two weeks and no more time to file counter affidavit.

List thereafter.

Order Date :- 8.4.2015

SKS

(Amar Singh Chauhan, J.) (Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 39808 of 2014

Petitioner :- Smt. Shakuntala Devi

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Manu Misra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

Passed over on the request of Sri Baleshwar Chaturvedi, the learned counsel for the respondent.

Order Date :- 30.4.2015

Bhaskar

(Amar Singh Chauhan, J.) (Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 39808 of 2014

Petitioner :- Smt. Shakuntala Devi

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Manu Misra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

The case is passed over on the illness slip of learned counsel for the petitioner.

Order Date :- 14.5.2015

Puspendra

(Amar Singh Chauhan,J.) (Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 39808 of 2014

Petitioner :- Smt. Shakuntala Devi

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Manu Misra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

Counter affidavit filed today, is taken on record.

Petitioner is granted four weeks time to file rejoinder affidavit.

List in the first week of July, 2015.

Order Date :- 28.5.2015

Puspendra

(Amar Singh Chauhan,J.) (Tarun Agarwala,J.)

Court No. - 3

Case :- WRIT - C No. - 39808 of 2014

Petitioner :- Smt. Shakuntala Devi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Manu Misra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

None has appeared on behalf of the petitioner to press the petition, even in the revised call. However, Mr. Virendra Kumar Gautam, Advocate holding brief of Mr. Baleshwar Chaturvedi, learned counsel for the Power Corporation is present.

The writ petition is dismissed for want of prosecution.

Interim order, if any, stands vacated.

Order Date :- 5.8.2021

M. Tariq